THE STATE
versus
S.J (Redacted)
and
PHILIP BASILIO

HIGH COURT OF ZIMBABWE
MUCHAWA J
HARARE; 19 to 20 February and 21 May 2025

Assessors: 1. Dr Mushonga
2. Mr Chakuvinga

Criminal Trial

Ms C Mutimusakwa, for the State
Ms A Wazvaremhaka, for first accused
Ms W Madzivire, for second accused

MUCHAWA J:

S J, the first accused, a male juvenile and Philip Basilio, a male adult are charged with murder as defined in s 47(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*].

The State's allegations are that on 24 February 2024 and at number 27 Dacomb Drive, Chisipite, Harare at around 2200 hours S J and Phillip Basilio, one or more of them, with intent to kill, or realizing that there was a real risk or possibility that their conduct might cause death and continuing to engage in their conduct despite the risk or possibility, assaulted Tafadzwa Ukama with fists and threw him down the stair case from the first floor to the ground floor. Whilst he was on the ground, they assaulted him on the head with a wooden pick handle thereby causing injuries from which Tafadzwa Ukama died.

In detail, the State alleged that both accused persons used to reside at number 27 Dacomb Drive, Chisipite Harare where the first accused's father, Robson Phiri was a caretaker whilst second accused was a tenant. The deceased was also a tenant at the same house.

On 23 February 2024 at around 0800 hours, the first accused unlawfully entered into the deceased's room and stole a Samsung A11 cellphone with Econet line 0781421753. He was however spotted by deceased and he fled to Mabvuku where he began to reside with the second accused person.

The following day around 2200hours and acting in connivance, the two accused persons went to the deceased's house armed with a wooden pick handle and a knife. They knocked at the deceased's door and he opened the door. He was immediately assaulted with open hands and fists and pushed down the staircase. The second accused then struck the deceased on the head with a wooden pick handle twice. They then searched the deceased and took his tablet, phone and cash amounting to US25.00, covered his body with a blanket and took the deceased's motor vehicle, a Honda fit, registration number AFT 4373 and drove towards Nyamapanda with the intention of crossing into Mozambique and disappearing. Unfortunately for them, they came across a police roadblock and were instructed to stop. They disobeyed the instruction and fled from the police.

In the haste of fleeing, they failed to negotiate a curve leading to the vehicle overturning resulting in an accident. The accused persons fled from the scene. Upon attending to the accident scene, the police recovered a tablet phone pouch and a Samsung cell phone with a cracked screen from the vehicle wreckage. These belonged to the deceased.

On 25 February 2024 the body of the deceased was discovered lying by the door at 27 Dacomb Drive, Chisipite and a report was made to the police.

On 29 February 2024 a post mortem examination was conducted by Doctor Guillen who concluded that the cause of death was subarachnoid hemorrhage, skull base and vault fracture and head trauma.

The deceased's Samsung A11 cellphone was recovered from the first accused's grandmother, Juliet Jefta in whose custody the first accused had left it after stealing it from the deceased on 23 February 2024. The first accused was arrested at Nyamapanda Border Post on 31 March 2024 following a tip off to the police by members of the public. He then implicated the second accused and another accomplice he referred to as Fido. The first accused led the police to the crime scene for indications which were held under camera. On 12 May 2024 the second accused was located and arrested.

Both accused persons pleaded not guilty.

In his defence outline, the first accused stated that he did not murder the deceased as alleged or at all. That on 24 February he was in the company of second accused as well as another male adult named Sylvester who is a friend to the second accused. He was afraid that after stealing the deceased's cellphone, the deceased would cause his arrest. Upon sharing his fears with his two aforementioned friends they convinced him that they could get rid of the deceased, take his money and vehicle and start a new life in Mozambique. He agrees that, he led the two adults to the deceased's home and knocked on his door and he opened for them. Sylvester is alleged to have grabbed the deceased and thrown him down the stair case from the first floor to the ground floor.

The second accused then requested a weapon and sent the first accused to fetch one from the storeroom. The first accused fetched a pick handle. Upon return, armed with the weapon, the second accused person instructed him to hit the deceased on the head, but he refused. The second accused then grabbed the pick handle and hit the deceased twice on the head.

The first accused was sent to search for the deceased's car keys and money. Upon returning with these he noticed that the other two were trying to carry deceased's body to the car but they dropped it after hearing some voiced in the compound. They then sped off in the vehicle leaving the deceased's body covered with a blanket and at the entrance.

In short, the first accused says he never hit or assaulted the deceased but as an impressionable adolescent, he did not fully appreciate the danger of leading his two friends to the deceased and was therefore a victim of bad influence and pressure from much older persons.

The second accused person denies any involvement in the murder of the deceased as alleged or at all. He points out that he had no prior relationship or motive with the first accused person. He did not know the first accused person until 20 February 2024 when first accused came to Kamfinsa Shopping Centre looking for his friend known as Sylvester. Both Sylvester and him are vendors at Kamfinsa Shops.

He had overhead first accused asking Sylvester for a place to sleep as he had been chased away by his stepmother from home. The two then left together on that day and the next.

A few days later he was informed by Sylvester that the first accused was wanted by the police in connection with a murder case that had occurred at first accused's house and first accused was a suspect.

On the date of the murder, the second accused said he left work around 6pm and went to Mother Sharks Bar in Mabvuku and had a few drinks and went straight home. He had been reporting to work every subsequent day.

He was arrested sometime in April 2024 and when he met the first accused in police custody he questioned why he had brought his name up for something he had not done. The first accused is alleged to have said that he had been assaulted by the police who demanded to know whom he had committed the offence with as they did not believe that he had done this alone due to his young age. He had therefore name dropped the second accused to escape further beatings.

It is averred too that at another point during investigations the first accused had confessed that he had committed the offence alone and had wrongly dragged the second accused and Sylvester into the matter. Thereafter Sylvester was released and the investigating officer and his superior said they could not release second accused as his docket was ready and he would answer for himself in court.

The State Evidence

The State opened its case by applying for the admission into evidence of the post mortem report. There were no objections, and the report was entered as exhibit 1. The report by Dr Robert Guillen concludes that the cause of death was head trauma, skull base and vault fracture and subarachnoid hemorrhage.

The first accused's warned and cautioned statement duly confirmed was admitted without objections as exhibit 2.

The wooden pick handle and its weight certificate were admitted into evidence as exhibit 3. The pick handle weighed 0.929 kgs and there were no objections to the admissions of this too.

The form of the indications and statements made at the scene of the accident together with the flash stick were admitted by consent as exhibit 5.

There are photographs of the scene and of the deceased which were admitted as exhibit 4A-4C.

Exhibit 6 is the Probation officer's report in respect of the first accused.

The evidence of the following witnesses was admitted without objections, in terms of s 314 of the Criminal Procedure and Evidence Act:

1. Beauty Tembeni

2. Patience Ukama
3. Juliet Jefta
4. Francisca Garawaziva
5. Mubani Mubani
6. Perpertual Chikosha
7. Robson Phiri
8. Muripa Francis
9. Dr Robert Guillen

Beauty Tembeni's evidence was to the effect that she was a tenant at house number 27 Dacomb Drive, Chisipite Harare on the date of the incident. She knows the first accused as a son to Pauline Munengwa who also resided at the same house. The deceased was also a tenant there. On 25 February 2024 at around 0625 hours, she was called by Pauline Munengwa and proceeded to the main house where she noticed that there was a dead body which was half covered with a blue blanket. Upon closer look she recognized the body as that of the deceased. She then accompanied Pauline to Zimbabwe Republic Police to file a report.

Patience Ukama knew the deceased as her brother and only knows the accused in connection with this matter. On 23 February 2024, she was called by the deceased on his mobile network number 0715229410 and the deceased told her that his cellphone, a Samsung A11 was stolen by the accused. She advised him to replace the sim card and he did so.

On 25 February 2024 as she was preparing to go to work, she received a phone call from Sergent Garawaziva from Murewa, advising her that there was a car belonging to Tafadzwa Ukama, a Honda fit registration number AFT 4373 which had been involved in an accident but the driver had fled the scene. She told the police officer that the deceased was in Harare and she would contact him and advise the officer. Her calls to the deceased were not being picked and she decided to go and check on the deceased. She was met by the horrific spectacle of her brother's body and police officers. She positively identified the body as that of her brother, the deceased. She observed that the deceased was covered with blood. Inside the house she observed pools of blood in the dining room and that the blanket covering the body was also soaked in blood.

Juliet Jefta is the first accused's grandmother. She did not know the deceased during his lifetime. On 24 February 2024 at around 2100hours she was at home in Highlands when the first accused person came. She noticed that he had a cellphone in his bag. When she

inquired on the owner of the phone, the first accused said it belonged to his father. She then took the phone and told first accused that she would give it to his father. Moments later the first accused left saying he was going home. On 26 February she was contacted by the first accused's step mother, Pauline Munengwa who explained that the first accused had stolen the phone which belonged to the deceased. On 10 March 2024 she was contacted by Detective Sergeant Nhapi who recorded a statement from her and she handed over the cellphone.

Francisca Garawaziva is a duly attested member of the Zimbabwe Republic Police who is stationed at Murewa Police Station, Traffic Section. On 25 February 2024 she was assigned to attend a road traffic accident which had occurred at the 84km peg on the Harare-Murewa Road. Upon attendance she identified the motor vehicle involved in an accident as a Honda Fit registration number AFT 4373 and noted that it had overturned. She observed blood stains at the door of the vehicle. Upon searching in the vehicle, she found the deceased's national identity card, passport and other documents with the deceased's name. Among these was a copy of the registration book in the name of Patience Ukama. She contacted Patience Ukama using the cellphone numbers in the registration book. Patience Ukama confirmed that she was the owner of the motor vehicle. She gave the deceased's number but his number was not reachable. The motor vehicle was toured to the police station for safekeeping.

On 26 February 2024, Assistant Chikaka handed over to her a Samsung cellphone claiming that it had been left at a roadblock by the accused person. Detectives from Criminal Investigations Department, Homicide then took over the case.

Mubani Mubani is another duly attested member in the Zimbabwe Republic Police based at Criminal Investigations Department Nyamapanda. His evidence is that he came across a message circulating on social media stating that the first accused person was wanted by the Criminal Investigations Department, Homicide in connection with a case of murder in February 2024. On 31 March 2024, an unknown person came to the police station and told him and other officers that the accused was at Nyamapanda Border Post. He went and took the first accused to the police station and interviewed him and contacted Detective Sergeant Nhapi, Criminal Investigations Department, Homicide who came and collected him for further Investigations.

Perpetual Chikasha is another duly attested member in the Zimbabwe Republic Police Stationed at Murehwa. On 24 February 2024 at around 2300 hours, she was on road night duty together with other officers and some members of the Zimbabwe National Army

when a blue Honda Fit vehicle arrived at the roadblock and was ordered to stop. The driver slightly pulled off but then sped off at high speed. The police could not give chase because they did not have a vehicle. On 25 February 2025 at around 0500 hours a member of the army approached her with a Samsung cellphone indicating that he picked it at a road traffic accident but the motorist refused to furnish him with his particulars. She took the cellphone and handed it over to Sergeant Garawaziva.

Robson Phiri is the father to the first accused person and knew the deceased during his lifetime as a tenant at a house he was a caretaker. He confirms that the wooden pick handle used in the commission of the offence was taken from a storeroom in the main house where he kept tools for his manual work.

Muripa Francis is yet another member of the Zimbabwe Republic Police stationed at Criminal Investigations Department, Homicide, Harare. He took the first accused person for indications which were held under camera and present was Detective Sergeant Chivhuro the interpreter, Detective Sergent Mukucha was cameraman and Detective Sergeant Chikerema was the driver. Since the first accused is a minor, they took him to Highlands Police Station where the purpose of making indications was explained to him and he understood and they proceeded to number 27 Dacomb Drive, Chisipite where the first accused made indications under camera and he signed the indications forms and his father also signed.

Doctor Guillen is a Medical Doctor who performed a postmortem examination on the deceased. He concluded that death was as a result of subarachnoid hemorrhage, skull base and vault fracture and head trauma. The post mortem report appears as annexure 1 in the evidence.

The first witness to give oral evidence was **Pauline Munengwa** who is the first accused's stepmother. She knew the deceased as a tenant at 27 Dacomb Drive, Chisipite where she lived with her husband who was employed there as a caretaker together with the first accused. They lived in the cottage. The deceased had been a tenant there for about 4 to 5 months.

On 25 February around 6.00 am she woke up to look for blankets she had missed which first accused had been using. She saw a heap towards the main house and approached and saw a shoe protruding from the blanket. Upon closer look she observed that the person was not responding to her inquiry about who he was. She saw that the face was covered with blood and ants. There was no sign of breathing and his eyes were closed. At this point she called Beauty Tembeni who also observed the same. They then went and made a report at the police

station. The deceased's body was ferried to hospital on 25 February 2024, but she was not present then as she had gone to visit her husband who was hospitalized.

At that time the first accused was not home as he had fled and she only saw him after his arrest. In between she had inquired from first accused's maternal grandmother Mrs Jefta about the first accused. Mrs Jefta had indicated that she had seen him in Avondale and had confiscated the cellphone he had stolen and chased him to his father's house.

She did not know the second accused at all and had first seen him at the commencement of this trial. She, however, knew the first accused's friend who was called Sylvester. Under cross examination by the first accused's counsel Pauline Munengwa denied that she had been treating the first accused differently from her children and neglecting him. When it was suggested that she had been relieved when he fled, she explained that the first accused had, in fact first stolen a cellphone from church on Friday and she had asked him to return it and shown him messages on Sunday from the person he had stolen from. This is when he fled. She had heard that first accused had been seen around the shops in the company of Sylvester. She confirmed that she had not seen the first accused committing the crime of murder. The blanket which was covering the deceased was not one of the blankets she had missed.

When the second accused's counsel sought clarification, Pauline Munengwa reiterated that she did not know the second accused person and did not know of any relationship between the two of them. She only knew Sylvester as a friend of the first accused.

This witness gave her evidence well and was unshaken. She painted the accused as a troubled child who was an unrepentant delinquent. She confirmed that the second accused was unknown to her and not an acquaintance of the first accused. She linked Sylvester, the previous tenant, to first accused as the one he had been with first accused, though the first accused exonerated him. We accepted her evidence as credible.

The second witness to testify was **James Nhapi**, the investigating officer. His investigations had revealed that the first accused had stolen the deceased's A11 Samsung cellphone and when he realized the deceased had seen him, he fled to his grandmother's home. The grandmother confiscated the phone. Meanwhile the deceased was searching for the first accused to recover his phone. He learnt that the first accused was at Kamfinsa shopping centre and drove there but found him gone.

The investigating officer's interviews with the deceased's sister led him to conclude that the first accused was afraid that he would be arrested and he became his first suspect.

Thereafter the deceased's cellphone was recovered from first accused's grandmother. Later, the investigating officer was called by the first accused's step mother who had been called by a Mozambican number. She had learnt that the first accused had been in Mozambique but was no longer there. The Mozambican contact promised to broadcast that the first accused was a wanted person. Subsequently, the first accused was spotted at Nyamapanda where he was apprehended by CID Nyamapanda. They then collected him and brought him to Harare. A statement was recorded from accused one, in the presence of his father as he is a minor. In his statement he implicated the second accused by reference to his name. He also made indications at the scene of crime and his warned and cautioned statement was confirmed.

Two cellphones were produced and entered as exhibits 7 and 8 without objections. The black Samsung phone was left in the motor vehicle after the accused persons had an accident and the phone was handed over to the investigating officer. The blue Samsung 11 phone was the one stolen by the first accused and confiscated by the grandmother. It was recovered from the grandmother.

In his investigations, it was established that a total of 3 people had been involved in the assault on the deceased. This is what the first accused initially said then he changed and said they were 2 only. Other than the second accused, the first accused had also implicated a Sylvester. However, when that Sylvester was arrested, the first accused denied that this was the Sylvester who was his accomplice. He provided a different address but they failed to locate any Sylvester there.

The investigating officer made it clear that besides the implication by first accused there is no other evidence linking the second accused to the offence.

When asked to comment on second accused's defence outline where he denies the allegations and says that at the relevant time, he was at Mother Shark Bar, the investigating officer pointed out that this alibi was never mentioned except the bare denial of the offence.

It was clarified that the first accused had voluntarily admitted the offence, was never assaulted and even made detailed indications on how they had committed the offence.

Under cross examination it was explained that Sylvester had been released because the first accused had denied his involvement. Second accused's counsel averred that the first accused had in fact denied his involvement too but only Sylvester was released. This was denied.

When it was put to the investigating officer that first accused had once more changed his position in his defence outline and was implicating both Sylvester and second accused person, he conceded that this raises concerns about the credibility of the first accused. He believes that the first accused is hiding the person he was with as they were led to different places in search of Sylvester.

This witness's evidence pieced together the pieces about the first accused's role in the murder as it was backed up by the video evidence. There was however a paucity in the investigations regarding the second accused especially on the suggested alibi. We overally accepted his evidence.

With the above evidence, the state closed its case.

The First Accused's Evidence

The first accused's testimony went as follows. He knows the second accused as a friend to Sylvester whom he was friends with. The second accused was not his friend and he had never stayed with him. They met at the shops through Sylvester.

Sylvester and second accused had overheard a phone conversation of some person at the shops who was conversing with the deceased who was reporting that first accused had stolen his phone. That person informed the deceased that first accused was at the shops.

What prompted the first accused and his accomplices to go to the deceased on the fateful day was the issue of the cellphone, a car and money. Second accused and Sylvester had told him that they should go and only take the motor vehicle and money from the deceased. They then all went to 27 Dacomb Drive, Chisipite. They jumped over the gate and went to the main house then entered through the screen gate at the back veranda. The first accused then knocked on the deceased's door and identified himself. The deceased opened the door. He was immediately grabbed by Sylvester who assaulted him using clenched fists on the face and shoved down the stairs. He fell. The second accused ordered the first accused to find a weapon to assault the deceased with. He went to the storeroom and found a pick and removed the pick head and returned with the pick handle. The second accused ordered first accused to assault the deceased. He refused to do so. The second accused then took the pick handle and assaulted the deceased. Sylvester then instructed him to search for the car keys. The first accused collected the car keys, cellphone, a tablet and US$25.00

When they were about to leave, they heard footsteps from the cottage, panicked and drove away in deceased's motor vehicle. The first accused drove the car first till after the

tollgate when he switched places with the second accused who took over the driving. They got to a roadblock and were instructed to park by the side as the car was overheating and there was smoke from the bonnet. Instead of parking, they sped off. At a curve, the car swerved and overturned. The first accused says he fainted and when he came to, he heard voices and realized he had been left alone. He ran away as he assumed the voices he had heard were from police officers. That night he slept in the bush and in the morning walked to Murehwa Centre where a truck driver took pity on him and gave him a lift to Nyamapanda. They arrived around 7.00pm and he slept at a market. In the morning, the owner of the market saw him and he introduced himself as Kudakwashe Phiri who was looking for a job. He was referred to this woman's friend and spent only two weeks at the job as he stole money from the new employer. He was paid US$ 20.00 which he used to cross into Mozambique.

In Mozambique the first accused met and stayed with one "Mai Inno." Mai Inno took many photos of the first accused and posted them on social media. This led to Mai Inno getting the contact numbers of the first accused's step mother. When he learnt of this, he decided to come back to Zimabwe leading to his arrest at Nyamapanda border post.

The first accused insisted that they were 3 when they committed the offence. He denied the investigating officer's evidence that at some point he had said they were only 2. He stated that Sylvester was there but the police had apprehended the wrong Sylvester.

The first accused averred that he had not assaulted the deceased but only collected the car keys and cellphone.

Under cross examination the first accused stated that he had been doing form 3 at Oriel Boys High School at the time of the offence. After stealing the deceased's Samsung 11 cellphone he had initially fled to his grandmother's home in Highlands and therefore to Mabvuku where he was staying with Sylvester. This Sylvester is the one who was once a tenant at 27 Dacomb Drive Chisipite. It is from this base that the first accused, Sylvester and second accused planned to visit the deceased with the intention of taking the car and money.

Though the first accused denied ever assaulting the deceased, it was put to him that the video exhibits of his indications show that they assaulted the deceased in common purpose, he agreed to this as he agreed to leading his accomplices to the deceased's room and collection of the weapon.

First accused refused to answer to the question that his conduct shows an intention to kill. He said he failed to stop his accomplices and this was a robbery gone wrong. He accepted

that he had never surrendered to the police but had fled to Nyamapanda, then Mozambique and then back to Zimbabwe.

Fido was said to be the second accused whom he was not friends with, but he was a friend to first accused's friend Sylvester, and they teamed up for the offence. When asked to comment on that he was not a victim of pressure as he was an active participant all the way, the first accused refused to comment but conceded that he was not forced. The Sylvester, who was his accomplice, was said to have never been apprehended. When finally asked whether he had any defence to the offence, the first accused said he had no defence and this is why he had initially pleaded guilty until his legal practitioners advised him to revise his plea to "not guilty."

Under cross examination by second accused's counsel, the first accused stated that he is 17 years old and knew second accused through Sylvester. Second accused was not his friend and he had known him for only about 2 weeks before the offence as he would meet him at the shops where he worked. They would only greet and talk about general issues. Second accused learnt about first accused's theft of deceased's cellphone when they learnt about the deceased hunting for him. The second accused was drawn to participate in the offence due to the car and money. It was first accused who led the other two to the deceased.

It was put to the first accused that his initial phone theft shows that he was capable of planning and executing an offence. His answer was that he had not planned the theft but the sight of the phone on the bed drew him to steal.

It was suggested that the second accused had been wrongly implicated so that the first accused could absolve himself. He said this was not true as he came to court and was admitting to the offence.

A reference to paragraph 4 of the first accused's defence outline where it is stated that the first accused was a victim of bad influence and pressure from older persons was refuted. The first accused denied this defence and said he was the one who took the people to the house and he was not changing his position. He had initially pleaded guilty, but his lawyer advised him to alter his plea so that the matter could proceed.

Another inconsistency between the warned and cautioned statement and his defence outline on what Sylvester did to the deceased was pointed to. In the former he said that Sylvester assaulted the deceased and threw him down the stairs and in the latter, he said Sylvester grabbed the deceased and threw him down the stairs. The first accused could not explain the differences but insisted that he knew what happened as he saw it.

The first accused denied the averment that he had falsely implicated the second accused after he was beaten by the police.

The Sylvester who was once a tenant at 27 Dacomb Drive Chisipite was said to be the one first accused met second accused through. He however denied that this was the Sylvester he committed the offence with. This Sylvester was said to be resident in Manresa and that he worked at his mothers' s market place at Kamfinsa shops and prepared sadza for sale. This was the Sylvester who was his friend and also friends with second accused.

The second Sylvester was said to be different. His name was Siliver and first accused got to know him through second accused. Both of them were not really his friends.

The Sylvester he was staying with when he left his grandmother's place was the one who was once a tenant at 27 Dacomb Drive and was his friend.

With this evidence, the first accused closed his defence case.

The Second Accused's Evidence

The second accused opened his evidence by confirming that he is 28 years old and his nickname is Fido. He knows the first accused from encounters when he would visit his workplace looking for one Sylvester who worked next to him.

He denied the charges and confirmed that he was never friends with first accused, never went with him to his house nor planned any offence together. He had never run away when the offence was committed and was arrested whilst at his workplace. He had never been to 27 Dacomb Drive Chisipite. The only Sylvester he knows is the one who was a previous tenant at 27 Dacomb Drive. He has no knowledge of the second Sylvester referred to by the first accused.

On the day of the alleged crime, the second accused was at work at Kamfinsa and closed early to catch transport to Mabvuku where he lived. He alighted at Mother Shark Bar around 7pm, watched some soccer and later went home to sleep. He has now moved to Athlone which is closer to his workplace.

He never knew the deceased during his lifetime. The first accused's evidence that they were together at the crime scene, that he struck the deceased and was the one driving the motor vehicle after the toll gate was said to be all lies.

Sylvester his friend had been arrested with him and they were taken to Highlands Police Station. First accused was brought in and asked if the two were his accomplices and he said no. They were then separated and investigating officer Nhapi questioned why second accused

was denying his involvement yet first accused was saying they were together. Despite being assaulted by the police, the second accused continued to deny being involved in the offence.

Sylvester was subsequently released as the first accused then said both had not been involved in the commission of the crime. They were taken to the senior police officer who said since the docket was complete, they should just go to court and first accused would exonerate them.

The investigating officer was alleged to have been lying when he said first accused never confessed that second accused was not part of the offence. Under cross examination, the second accused accepted that his nickname is Fido but insisted he was not part of the crime commission, and first accused was lying when he said they passed through his house in Mabvuku so he could change from his blood-stained clothes.

The second accused said even though the offence was allegedly committed in February 2024, he had always been available at his workplace till May 2024 when he was arrested. He had no interest nor previous offences involving cars.

On the Mother Shark Bar alibi, the second accused said he had stayed in Mabvuku for only 3 months and did not know anyone who could confirm his presence at the bar.

The second accused closed his defence case with this. It had been intended to prove through CCTV footage from ZINARA that the second accused was not in the motor vehicle on the relevant day when the stolen motor vehicle passed through the tollgate. Unfortunately, ZINARA was unable to avail the CCTV footage due to passage of time. This was the response to the court order which had been issued at the instance of the second accused..

Agreed Facts

The first accused agrees that he led his two accomplices to 27 Dacomb Drive Chisipite, which is where both he and the deceased lived.

It is also common cause that the first accused had stolen the deceased's cellphone, was seen by deceased and fled. He was aware that the deceased was hunting for him and was afraid of being arrested for that theft.

The evidence from both accused persons confirms that they were not friends but had come to know each other through a Sylvester who was a vendor at Kamfinsa Shops who had once stayed with the first accused at 27 Dacomb Drive, Chisipite. They had known each other for only two weeks prior to the alleged offence. It is common cause that the deceased who lived on the first floor was found by the door of the main house, covered in a blue blanket and

lifeless. This is as per the evidence of Pauline Munengwa, Beauty Tembeni and photographic exhibits 4A-4C.

It is agreed and established from the post mortem report that the deceased succumbed to injuries sustained from an assault and the cause of death was subarachnoid hemorrhage, skull base and vault fracture and head trauma.

The first accused confessed that he led the other two accomplices to the deceased, that he knocked on his door and fetched the weapon used to finish off the deceased after his fall. He also fetched the car keys and a cellphone and drove off in the deceased's car with his accomplices. The first accused confessed that he had no real defence to offer and pleaded guilty though he was advised by his legal practitioner to revise this to not guilty.

The Disputed Facts and Analysis of the Evidence

The first disputed fact is whether the second accused was an accomplice to the commission of the crime of murder as alleged. The investigating officer testified that there is no other evidence linking the second accused to the offence except the implication by the first accused.

Therein lies the problem. The first accused's credibility is shaky. According to the investigating officer, he initially implicated one Fido and a Sylvester as his accomplices. The confirmed warned and cautioned statement entered as exhibit 2 was recorded in the presence of his father. Later the first accused changed and said it was only the two of them who had been involved in the offence. He exonerated the Sylvester who once stayed at 27 Dacomb Drive who was second accused's friend and fellow vendor at Kamfinsa shops. He said there was a second Sylvester who has turned out to be elusive as the police were given several addresses and no such Sylvester was located. Even the investigating officer conceded that the first accused's shifting position puts a dent in his creditability as now a Sylvester has resurfaced in the first accused's defense outline.

Under cross examination, the first accused, contrary to the warned and cautioned statement, said after stealing the deceased's phone and leaving his grandmother's house, he had gone to stay with his friend Sylvester who had once stayed at 27 Dacomb Drive Chisipite, in Mabvuku. In the warned and cautioned statement he says he went to stay at Fido's place.

Though the first accused said he had met second accused through Sylvester his friend he attributed the second Sylvester also known as Siliver as having been met through second accused too. The second accused denied any knowledge of a second Sylvester or a Siliver.

At some point under cross examination, the first accused made a revealing fact that the plan to visit the deceased was made whilst he was staying at Sylvester (his friend not Siliver)'s place.

Even Pauline Munengwa, first accused's step mother did not know the second accused as first accused's friend. It was Sylvester whom she knew. She first saw the second accused at the commencement of trial.

Overall, the first accused did not present as a credible witness in relation to who his accomplices were. If he could shift his position so easily on Sylvester and appear to be protecting someone, would his evidence be trusted on Fido?

Second accused struck us as an uncomplicated witness, who accepted his nickname Fido, in a situation where he could easily have denied it as it was the basis for his implication.

He questioned the motive in participating in the alleged murder as he was not a friend to first accused, had not participated in the theft of the cellphone and therefore had no arrest threat over him. He had only known the first accused for barely two weeks and did not know the deceased. He even went to the extent of applying for the CCTV footage at the tollgate, from ZINARA, which was unfortunately no longer available. Would he have gone to such lengths knowing fully well that his presence in the motor vehicle would be confirmed?

The second accused gave the defence of alibi. The investigating officer indicated that this had not been investigated as it was first raised in the defence outline. The warned and cautioned statement was said to be a bare denial. In his closing submissions, second accused insisted that he had provided the defence of alibi from the very beginning to the police and in his warned and cautioned statement. This statement was however not produced in evidence. It does however say, without detail, that "on the day the offence was committed I was at the beer hall, and I went home". In *S* v *Aston Tadiwanashe Mandaza and ORS* HH 116/24, it was held as follows;

> "What comes out of the Supreme Court holding in the above case is that where an accused raised an alibi, it is the responsibility of the police and by extension, that of the prosecution to investigate the alibi and reach a definitive conclusion regarding its truthfulness and accuracy. I also read the decision to mean that it is not expected that the police and prosecution will investigate an alibi that is raised for the first time when the accused gives his/her defence outline. Instead, the accused must raise the alibi at the earliest possible opportunity"

In this case the alibi was raised at the earliest possible time but not investigated. In the totality of the evidence against the second accused, it would be unsafe to find that he was an accomplice

to the offence of murder simply based on implication by the evidence of an unreliable first accused person particularly as the investigating officer made clear that there was no other evidence linking him to the offence. We therefore find that the State has failed to prove beyond reasonable doubt that the second accused was a participant in the murder of the deceased.

The next issue crying for resolution is whether the first accused can be found guilty of the murder based on the evidence adduced. There was no eyewitness to the murder. The first accused through his confirmed warned and cautioned statement states the following;

> "I then went back to Mabvuku where I told Fido and Sylvester that Tafadzwa wants me arrested over the cellphone issue and we then planned to murder him and take his motor vehicle and if he had money, we would also take it and proceed to Mozambique."

The indications by the first accused which were captured on video show graphic details of how the crime was committed. In both his evidence in chief and under cross examination, the first accused confessed to commission of the offence. He disowned the defence outline and said he had never put the defence that he was young and influenced by adults as he was the one who took his accomplices to the deceased's place. He said when he came to court, he wanted to plead guilty but his lawyer is the one who said he should plead not guilty so that the matter could proceed.

Basically, the accused has confessed and at law it is permissible to convict on the basis of a confession. See s 273 of the Criminal Procedure and Evidence Act which provides as follows:

> "Any court which is trying any person on a charge of any offence may convict him of any offence with which he is charged by reason of a confession of that offence proved to have been made by him although the confession is not confirmed by other evidence: Provided that the offence has, by competent evidence other than such confession, been proved to have been actually committed."

The first accused however said that at some point, when they went to the deceased, they only wanted to get his car and money and not to kill him. This was said to be a robbery gone wrong.

The evidence does not support this assertion. As we have already shown above, first accused in his warned and cautioned statement said that they planned to kill the deceased, take the car and money and go to Mozambique. This is exactly what transpired. The deceased was killed, his car was taken and they were en-route to Mozambique when they had an accident. First accused still made his way to Mozambique.

The actual intention to kill the deceased is also evident from the weapon used. A 0,929 kgs wooden pick handle was used to strike him on the head. This was someone already injured from falling down a flight of stairs. The blows were directed at a sensitive part of the body, the head. The post mortem report confirms that this led to head trauma, fracture of the skull base and vault and subarachnoid hemorrhage. The attack was therefore severe. This is evident from exhibits 4A-4D which are pictures showing the severe injuries to the head. In *S* v *Wairosi* HCM 57/27 it was held that the weapon used, body part attacked and severity of the attack show actual intention to kill. In *casu* there was a clear intention to kill.

The claim that this was a robbery gone wrong is further dispelled by the fact that the first accused who was already on the run for the theft of the cellphone actually came and identified himself to the deceased. His nerve must have come from knowing that the deceased would be unable to report him as they had planned to kill him.

Can the court exonerate the first accused on account of his claim that he did not push the deceased down the stairs and did not strike him with the wooden pick handle? We think not. As admitted by him, he was the one with a grievance against the deceased who intended to get him arrested for the theft of his cellphone. He is the one who invited his accomplices. They planned together to kill the deceased and take his car and money. He led them to the house. He is the one who lulled the deceased to open his door as he identified himself. He possibly thought his phone was being returned. First accused watched and did not stop his accomplices as they assaulted the deceased. He fetched the wooden pick handle, the lethal weapon which finished off the deceased. He fulfilled the plan to steal the car and money by going to fetch same from the deceased' room. He is the one who drove the car from the house, all the way, past the tollgate in the planned direction of Mozambique.

We look to the case of *S* v *Mutoti* HCC 41/23 wherein the court made the following position clear.

"In its closing submissions the State relied on the doctrine of common purpose to pin liability on the accused. The doctrine of common purpose is now codified under S196A on co-perpetrators and S 197 on accomplices.

The defence in its closing submissions raised a salient point that the accused can not be convicted on the doctrine of common purpose when his co accused persons are acquitted. Put differently, the issue is whether the doctrine is applicable where one person is before the court."

This is exactly the same position *in casu*. Sylvester is not before the court. The state has failed to prove beyond reasonable doubt that the second accused is guilty of murder. Only the first accused has confessed to the commission of the offence though he says he did not deliver the fatal blows.

My sister MUZOFA J, IN *S* v *Mutota s*upra extensively deals with the subject. She continues as follows;

"Section 197 (2)(b) of the Criminal Code deals with the liability of accomplices. In terms of the section, it is competent to charge and convict an accomplice even if it has not been possible to bring the actual perpetrator to trial. The liability of a co-perpetrator does not depend on a conviction of the actual perpetrator or the other accomplices. The state must establish that the deceased was attacked by a group of people and liability will only attach to those positively identified to have taken part in the attack. It would be absurd to excuse an accused who has been positively identified within a group of assailants to have committed the offence simply because the rest of the group members are not before the court. On the other hand, it would be legally incompetent to prefer a charge of murder as if the said accused committed the offence alone. The issues on causation would defeat the charge. The first accused satisfies the common purpose requirement. He was present at the scene of the crime and associated together with the co-perpetrators or accomplices in the acts of commission or omission associating himself with the conduct. See Jonathan Burchell, Principles of Criminal Law, 5th ed at page 477. In S v Mgedezi 1989 (1) SA 687 (A) at 705-6 the court said:

> "Where only one (or a few) of the participants inflict the fatal injury, even a slight degree of assistance by an associate in common purpose is sufficient to lead to a finding that he was also criminally liable."

Legal Conclusion

Given the analysis above, it is our finding the first accused, S J is guilty of the crime of murder as defined in s 47 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] as the State has managed to prove this beyond reasonable doubt.

On the other hand, the state failed to prove beyond reasonable doubt that the second accused, Phillip Basilio is guilty of murder. He is therefore found not guilty and acquitted.

MUCHAWA J:.....

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Madzivire Attorneys, Second Accused's Legal Practitioners.